

Message 1 of 32

Re: Enron/Mahonia December 2000 forward sale documents

Sender	teresa.bushman@enron.com
Recipients	[jeffrey.hodge@enron.com]
File	hodge-j/notes_inbox/50.

Jeff:

We don't have provisions in a physical contract requiring posting collateral, do we?

Teresa

Teresa G. Bushman Enron North America Corp. 1400 Smith Street, EB 3835A Houston, TX 77002 (713) 853-7895 fax (713) 646-3393 teresa.g.bushman@enron.com

----- Forwarded by Teresa G Bushman/HOU/ECT on 12/13/2000 08:33 PM -----

Michael Garberding 12/13/2000 05:08 PM

To: Teresa G Bushman/HOU/ECT@ECT cc: Subject: Re: Enron/Mahonia December 2000 forward sale documents

Teresa,

Two quick questions - first, where will the rehypothecation procedures with regard to Stoneville be documented (between Stoneville and Enron)? Second, why did the "Interest Rate" definition in the Margin Agreement Amendment change from a Libor-based number to a Fed Funds-based number? Thanks again and let me know.

Mike

Joseph Deffner 12/13/2000 02:42 PM

To: Michael Garberding/HOU/ECT@ECT cc: Subject: Re: Enron/Mahonia December 2000 forward sale documents

----- Forwarded by Joseph Deffner/HOU/ECT on 12/13/2000

02:36 PM -----

Teresa G Bushman 12/12/2000 06:26 PM To: "Rosser, Dianna" <drosser@velaw.com>@ENRON cc: "Shouse, August" <AShouse@velaw.com>, Joseph Deffner/HOU/ECT@ECT Subject: Re: Enron/Mahonia December 2000 forward sale documents

Dianna:

Attached is an Amendment to the most recent Margin Agreement that is being circulated. Please incorporate these changes into the Margin Agreement.

Thanks.

Teresa

Teresa G. Bushman Enron North America Corp. 1400 Smith Street, EB 3835A Houston, TX 77002 (713) 853-7895 fax (713) 646-3393 teresa.g.bushman@enron.com

"Rosser, Dianna" <drosser@velaw.com> 12/12/2000 06:05 PM

To: "teresa.g.bushman@enron.com" <teresa.g.bushman@enron.com> cc: "Shouse, August" <AShouse@velaw.com>
Subject: Enron/Mahonia December 2000 forward sale documents

Teresa,

Attached please find clean and blacklined drafts of the main documents. Augie and I have talked with Milbank and plan to send them drafts of these documents tomorrow, but we wanted to give you a chance to review them first. Please feel free to call or e-mail us with any questions or comments.

Warm regards,

Dianna J. Rosser Vinson & Elkins L.L.P. Business and International Section 3300 First City Tower 1001 Fannin Street
Houston, Texas 77002-6760 tel: (713) 758-3688 fax: (713) 615-5899 email: drosser@velaw.com

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- Houston_404983_1.DOC - Houston_408033_1.DOC - Houston_404950_1.DOC - Houston_404980_1.DOC -
Houston_404914_1.DOC - Houston_404981_1.DOC - Houston_404917_2 (2).DOC - Houston_404942_1.DOC -
Houston_404948_1.DOC - Houston_408015_1.DOC - Houston_408008_1.DOC - Houston_408002_1.DOC -
Houston_407997_1.DOC - Houston_407993_1.DOC - Houston_407981_1.DOC - Houston_407974_1.DOC

Message 2 of 32

An Inbound Message For You Has Been Quarantined

Sender	enron.mailsweeper.admin@enron.com
Recipients	[jhodge2@notes.enron.com]
File	hodge-j/inbox/641.

You have received this message because someone has attempted to send you an e-mail from outside of Enron with an attachment type that Enron does not allow into our messaging environment. Your e-mail has been quarantined and is being held at the MailSweeper server.

Sender: edu@activeworlds.com Date: Wed, 7 Nov 2001 13:09:02 -0600 (CST) Subject: Attachment Type:
Scenarios/Incoming/Inbound EXE Catcher: A filename matching the file mask was detected: 'readme.exe'.

If the intended email is of valid business-related content and you believe it requires Enron resources to retrieve it, you may call your Help Desk and ask to have it released from quarantine and delivered to your e-mail Inbox. Your message will be scanned and checked for viruses prior to requested release. If it contains a virus or there is reason to suspect it is malicious code, it will not be delivered.

North American Resolution Center: 713 853 1411 European Resolution Center: 0044 207 78 36777 EES Help Desk: 888 853 9797 ETS Solution Center: 713 345 4745 (Houston) or 402 398 7454 (Omaha)

Please DO NOT reply to this address as it is not a monitored system mailbox.

Message 3 of 32

RE: Bethlehem Steel

Sender	t..hodge@enron.com
Recipients	[rick.antonoff@cwt.com]
File	hodge-j/deleted_items/209.

Rick:

The letter looks good to me. I would go ahead to send this.

Jeff

-----Original Message-----

From: "Rick Antonoff" <Rick.Antonoff@cwt.com>@ENRON Sent: Thursday, October 25, 2001 12:22 PM To: jhodge@enron.com; Imellencamp@enron.com Cc: David Mitchell Subject: Bethlehem Steel

Attached below is a draft letter to Bethlehem's counsel as Jeff and I discussed yesterday afternoon. Please let me know if you have any comments. I will wait to hear from you before sending it. (See attached file: #149720 v1 - bethlehem -- letter (2) to ng re utility order.doc)

Rick B. Antonoff Cadwalader, Wickersham & Taft 100 Maiden Lane New York, NY 10038 Phone: 212 504-6759 Main Fax: 212 504-6666 Local Fax: 212 993-2539 Mobile: 917 287-6391 Email: rick.antonoff@cwt.com

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- #149720 v1 - bethlehem -- letter (2) to ng re utility order.doc << File: #149720 v1 - bethlehem -- letter (2) to ng re utility order.doc >>

Message 4 of 32

Request for Capacity Release - IGTS and TGP

Sender	kevin.heal@enron.com
Recipients	['howard.sangwine@enron.com', 'john.hodge@enron.com']
File	hodge-j/discussion_threads/18.

John As discussed on Monday, Enron Canada has agreed to restructure its "Boston Gas" agreements with Encal Energy so that Encal will become the shipper of record for a portion of the TGP and Iroquois capacity. They in turn will release back to ENA for one year each April. There should be no disruption to the East Desk business other than they will have additional contracts to manage for the same net volume.

These are the precise releases we would like you to initiate. What we need to know as soon as possible is what if any credit requirements from Encal that the pipelines will require.

Pipe Path Type Assignor Assignee Start Date Expiry Date Volume Comment

IGTS Waddington to Wright Perm ENA Encal Mar 1, 2001 Mar 31, 2007 7,600 mmbtu from contract 125008 IGTS Waddington to Wright Temp Encal ENA Mar 1, 2001 Mar 31, 2002 7,600 mmbtu to be renewed annually

Contract 125008 has a capacity of 35,465 mmbtu with a term of Mar 31/07. After this release there should be 27,865 mmbtu remaining.

TGP Wright to Boston CG Perm ENA Encal Mar 1, 2001 Mar 31, 2007 7,500 mmbtu from contract 29667 TGP Wright to Boston CG Temp Encal ENA Mar 1, 2001 Mar 31, 2002 7,500 mmbtu to be renewed annually

Contract 29667 has a capacity of 35,000 mmbtu with a term of Mar 31/07 and a fixed fuel ratio of 1.31%. After this release there should be 27,500 mmbtu remaining.

Contact Info:

Jim Jepson Manager, Gas Marketing Encal Energy Ltd. 1800, 421 Seventh Ave SW Calgary, Alberta, Canada T2P 4K9 Phone 403 750-3308 Fax 403 266-1072 Email jamesj@encal.com

Let me know if you need to talk to Encal directly. We would prefer to manage the relationship through our office.

Thanks Kevin Heal 403 974-6727

Message 5 of 32

FW: Bethlehem Steel

Sender	lisa.mellencamp@enron.com
Recipients	['t..hodge@enron.com']
File	hodge-j/deleted_items/121.

jeff, will you fax to him. talk to weil and expect them to back down. thanks -----Original Message----- From: "Rick Antonoff" <Rick.Antonoff@cwt.com>@ENRON Sent: Thursday, October 18, 2001 7:13 PM To: Mellencamp, Lisa Cc: David Mitchell Subject: Bethlehem Steel

I was able to obtain copies of the petition, utility order and other pleadings in the Bethlehem case via the court's internet site. I would like to see the contract(s) that ENA has with Bethlehem to determine whether there is any basis to deem ENA a utility for purposes of section 366. For our conflicts check, I need to know which Bethlehem company(ies) the ENA contract is with. As far as I see in the motion, only ENA is listed as a utility.

Interestingly, in the motion, the debtor states: "Nothing contained herein shall constitute an admission by the Debtors that a listed entity is a utility entitled to the protections afforded by section 366 or any other provision of the Bankruptcy Code." Indeed.

Nevertheless, for the time being, the order does prohibit the "Utility Companies," which definition includes ENA, from altering, refusing or discontinuing service to, or discriminating against, the Debtors. While arguably ambiguous as to whether ENA is rendering a service or whether closing out the contract is discrimination, prudence dictates complying with the order until we get it changed.

What I'm thinking as far as strategy is that if we conclude that the contract is a forward contract, we try to convince Bethlehem's attorneys to remove ENA from the list of utilities and amend the motion and the order accordingly. If they don't and the dollars involved in closing out the contract are significant -- bearing in mind that the order "authorizes" but does not direct Bethlehem to pay postpetition invoices for services rendered by the utilities -- then we move for a declaratory judgment that ENA is not a utility within the meaning of section 366.

Regards.

Rick B. Antonoff Cadwalader, Wickersham & Taft 100 Maiden Lane New York, NY 10038 Phone: 212 504-6759 Main Fax: 212 504-6666 Local Fax: 212 993-2539 Mobile: 917 287-6391 Email: rick.antonoff@cwt.com

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Message 6 of 32

Bethlehem Steel

Sender	rick.antonoff@cwt.com
Recipients	['jhodge@enron.com']
File	hodge-j/deleted_items/165.

I sent this to Lisa last night but since she's not in today, you may not have seen it.

----- Forwarded by Rick Antonoff/NY/CWT on 10/19/01 04:49 PM -----

Rick Antonoff To: lisa.mellencamp@enron.com cc: David Mitchell/NY/CWT@CWT 10/18/01 Subject: Bethlehem Steel 08:13 PM

I was able to obtain copies of the petition, utility order and other pleadings in the Bethlehem case via the court's internet site. I would like to see the contract(s) that ENA has with Bethlehem to determine whether there is any basis to deem ENA a utility for purposes of section 366. For our conflicts check, I need to know which Bethlehem company(ies) the ENA contract is with. As far as I see in the motion, only ENA is listed as a utility.

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Regards.

Rick B. Antonoff Cadwalader, Wickersham & Taft 100 Maiden Lane New York, NY 10038 Phone: 212 504-6759 Main Fax: 212 504-6666 Local Fax: 212 993-2539 Mobile: 917 287-6391 Email: rick.antonoff@cwt.com

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FW: GPP Consent to Assignment

Sender	djhyl@aep.com
Recipients	['LIGHTBOURN', 'BYRON' <bgannaway@tielp.com>, 'GANNAWAY', 'JOHN' <JL='t..hodge@enron.com']
File	hodge-j/inbox/378.

Jeff,=20 Please look at the attached form of Assignment for the assignment o= f the Guadalupe Contract effective November 1, 2001. If it is okay, please= have it executed and returned to me. =20 ----- Forwarded by Daniel J Hyvl/AEPIN on 12/07/01 01:26 PM -----=20 =09"Phil Schnorbach" <PSchnorbach@tielp.com> 12/07/01 10:49 AM Please resp= ond to PSchnorbach =09 =09

Date: 12/07/2001 10:49:40 AM=20 From: "Phil Schnorbach"=20 To: <djhyl@aep.com>, <smbraband@aep.com>=20 cc: "GANNAWAY,BYRON" <bgannaway@tielp.com>, "LIGHTBOURN, JOHN" <JL= ightbourn@tielp.com>, "LINENWEBER, DOUGLAS" <DLINENWEBER@tielp.com>, "MAERZ= , JILL" <JMaerz@tielp.com>, "OVERTURF, SHERYL" <soverturf@tielp.com>, <jcof= fey@enron.com>=20 Subject: FW: GPP Consent to Assignment=20 Dan and/or Sandy - As I requested yesterday, we would like to get a copy of= the actual assignment of the Gas Contract from Enron to HPL. It has becom= e even more important for us to receive that as our accounting group wants = to know who it should be

paying and, as you can understand, we need to assure ourselves that HPL was the actual contracting party and, therefore, is owed the money for gas purchased thereunder before we release the money to HPL. Also, it will be important to see what date the assignment occurred and, if Enron and HPL want payments to occur that are different than the effective date of the assignment, we will need to receive proper authorizations from both parties indicating different payment scheme. Thus, if the assignment is effective on Dec. 1, we will pay Enron for all gas purchased thereunder through Nov. 30 unless instructed otherwise (and we will need both parties' concurrence on this)! . Until we get proper authorization, our accounting people have been told to hold the money owed so we pay the proper party. In this connection, it would be helpful to get this information as soon as possible. If you have any questions regarding this, please call me at (972) 628-2750 or Doug Linenweber in accounting at (972) 628-2755. Thank you. =20 =20 Phil Schnorbach =20 =20 =20 =20 =20 -----Original Message----- From: Phil Schnorbach [mailto:PSchnorbach@tielp.com] Sent: Thursday, December 06, 2001 11:03 AM To: 'djhyvl@aep.com'; 'smbraband@aep.com' Subject: FW: GPP Consent to Assignment =20 Dan and/or Sandy- As you can see from the notes below, Jim Coffey suggested that I contact you to obtain a copy of the actual assignment between Enron and Houston Pipe Line Company regarding the assignment of the Gas Contract with Guadalupe Power Partners. Could you send me a copy at the following address: =20 =20 Phil Schnorbach =20 Guadalupe Power Partners, LP =20 13760 Noel Road =20 Suite 930 =20 Dallas, TX 75240 =20 =20 and a fax copy at (972) 490-4635. Thank you. =20 =20 =20 =20 -----Original Message----- From: Coffey Jr., Jim [mailto:Jim.Coffey@ENRON.com] Sent: Thursday, December 06, 2001 10:38 AM To: SCHNORBACH, PHIL Cc: bjhyvl@aep.com; smbraband@aep.com; Redmond, Brian; Hodge, Jeffrey T.; j= anet@dtahou.com; Martin, Thomas A. Subject: GPP Consent to Assignment =20 Phil =20 =20 Please work directly with Dan Hyvl and Sandy Braband at AEP to forward you copies of the executed assignment agreements. Also from my discussions with Dan Hyvl, the guarantee should be sent from AEP to you this week as well. = Please let me know if you need anything else from Enron. =20 =20 thanks. =20 =20 Jim Coffey =20 -----Original Message----- From: Phil Schnorbach [mailto:PSchnorbach@tielp.com] Sent: Wednesday, December 05, 2001 11:07 AM To: Coffey Jr., Jim Subject: RE: Consent to Assignment =20 Jim- Could we get a copy of the assignment itself so we can know with certainty that the assignment occurred. Thanks. =20 -----Original Message----- From: Coffey Jr., Jim [mailto:Jim.Coffey@ENRON.com] Sent: Tuesday, December 04, 2001 4:55 PM To: SCHNORBACH, PHIL Subject: RE: Consent to Assignment =20 I have received it. Is there anything else that you need from me? =20 -----Original Message----- =20 From: Phil Schnorbach =20 Sent: Fri 11/30/2001 5:12 PM =20 To: Coffey Jr., Jim =20 Cc: =20 Subject: RE: Consent to Assignment Jim- As we discussed on the phone, I faxed an executed copy to you and to Dan Hyvl. -----Original Message----- =20 From: Coffey Jr., Jim [mailto:Jim.Coffey@ENRON.com - Assignment of Contract (HPL).doc

Message 8 of 32

WV gas	
Sender	bryan6110@msn.com
Recipients	['john.hodge@enron.com', 'bryan6110@email.msn.com']
File	hodge-j/inbox/682.

Paul L. Bryan Mineral Trust Richard H. Bryan, Trustee 6110 Barfield Road Atlanta, GA 30328 Tel: 404 252 7748 Fax: 404 252 7748 Email: bryan6110@email.msn.com

To: John Hodge, Enron Sent by email

From: Dick Bryan 20 November 2001

Please have the appropriate person sign below and fill in the TCO pool information. Please fax the signed memo we discussed yesterday and this memo signed to me at 305 534 0206 and put "room 609" as part of the address. Hopefully, you can fax both signed pages today.

If you or some appropriate person would fill in the blank below and sign on the signature line and send this to me by return fax, it would be greatly appreciated.

Enron certifies that all gas delivered to the Paul L. Bryan Mineral Trust in November 2001, December 2001, and beyond will be 100% West Virginia production. The TCO pool, that contains only WV gas, from which the gas is and will be scheduled is _____.

Signature Date

Title

Sincerely,

Richard H. Bryan

Get your FREE download of MSN Explorer at <http://explorer.msn.com/intl.asp>

- JH011120.rtf

Message 9 of 32

Re: Maritimes and Northeast Pipeline

Sender	juanita.marchand@enron.com
Recipients	['michael.eiben@enron.com', 'john.hodge@enron.com', 'bruce.j.mulholland@customs.treas.gov', 'irene.flynn@enron...]
File	hodge-j/all_documents/33.

Thank you for your prompt reply. I have made note that the pipeline is located in the Port of Calais, Maine area. Juanita Marchand

BRUCE.J.MULHOLLAND@CUSTOMS.TREAS.GOV@CUSTOMS.TREAS.GOV on 01/26/2001 12:59:39 PM Please respond to BRUCE.J.MULHOLLAND@CUSTOMS.TREAS.GOV To: Juanita.Marchand@enron.com, JOHN.C.FOX@CUSTOMS.TREAS.GOV, TIMOTHY.E.DONNELL@CUSTOMS.TREAS.GOV, DEBORAH.L.ZWEARCAN@CUSTOMS.TREAS.GOV cc: jensen@ainop.com Subject: Maritimes and Northeast Pipeline

January 26, 2001

Ms. Juanita Marchand Enron North America Corp. 1400 Smith Street Houston, TX 77002

Dear Ms. Marchand:

On January 26, 2001 this office received an E-Mail memo from your office outlining a request to file monthly entries in conjunction with the importation of natural gas via the Maritimes and Northeast Pipeline from the Sable Island Project, Nova Scotia, Canada. I would like to clarify one point. The pipeline in question is located within the Area Port of Calais, Maine not Houlton, Maine as you indicated in your memo..

Based on the information provided, Enron North America Corp. is authorized to import natural gas via the pipeline located in Baileyville, ME. Enron must file monthly entries by the 15th day of each month at either the Customs Office in Calais, ME. or Portland, ME. Customs will reconcile the monthly entry against the manifest quantities supplied by the carrier, in this case, Maritimes and Northeast Pipeline.

If you have further concerns please do not hesitate to contact this office.

Sincerely,

Bruce Mulholland Supervisory Customs Inspector U S Customs Service 1 Main Street Calais, ME 04619

Tel (207) 454-3690 ext. 102 Fax (207) 454-7122 E-mail: BRUCE.J.MULHOLLAND@CUSTOMS.TREAS.GOV

Message 10 of 32

FW: Assignment Documents

Sender	t..hodge@enron.com
Recipients	['tanya.rohauer@enron.com', 's..theriot@enron.com', 'peter.keohane@enron.com']
File	hodge-j/sent_items/98.

Peter:

Attached is as Assignment Agreement that Tenaska Marketing Canada would like to enter to move certain November ENA trades to ECC. Frankly, this ultimately becomes a payables issue as most of the deliveries have been completed. I have approved the document and am forwarding it on to credit to handle getting the signatures. I would appreciate it if you could expedite this when it gets to you.

Thanks,

Jeff -----Original Message----- From: Theriot, Kim S. Sent: Friday, November 16, 2001 2:05 PM To: Hodge, Jeffrey T. Cc: Rohauer, Tanya; Baxter, Bryce; Perlingiere, Debra Subject: FW: Assignment Documents Importance: High

Jeff, Attached is the New Revised spreadsheet of Tenaska transactions which they want to assign to ECC. Please note that the top two deals on the spreadsheet are booked as ENA to Tenaska Marketing Ventures....Tenaska wants those trades to be between ECC and Tenaska Marketing Canda as well.

This new spreadsheet (attached at the bottom on the right) shows our Deal Info. as well Tenaskas Deal info. Mark Soulliere at Tenaska would like to have this ASAP...He would like to have the executed copy fax to his attention at (402) 758-6142. Please call with any questions.

Kim Theriot x. 31771

-----Original Message-----

From: Rohauer, Tanya Sent: Monday, November 12, 2001 8:01 AM To: Theriot, Kim S.; Hodge, Jeffrey T. Cc: Otto, Randy; Williams, Jason R (Credit) Subject: FW: Assignment Documents

Please see the attached assignment. Kim, can someone on your staff/Peggy's staff please identify/confirm these ECC deals? I do not see a problem assigning the ENA deals to ECC as they are current month deals that will allow netting of the purchases and sales. Should not affect the PMTM which has a threshold in the contract. Would like to try to finish up quickly. Please advise if anything CRM can do to help.

Thanks, Tanya

-----Original Message-----

From: Chris Van Scyoc [mailto:cvanscyoc@tmvgas.com] Sent: Friday, November 09, 2001 5:29 PM To: Rohauer, Tanya Cc: Mark Soulliere Subject: Assignment Documents

Tanya,

Per your conversations with Mark Soulliere, we have drafted and attach for your execution an Assignment of outstanding physical transactions between Tenaska Marketing Canada and Enron North America Corp. to Enron Canada Corp. Please get back to me with any questions or comments you or your legal department may have on Monday or Tuesday of next week.

Chris Van Scyoc Supervisor, Contract Administration Phone: (402) 758-6135 Fax: (402) 758-6250

Message 11 of 32

Maritimes and Northeast Pipeline-Udate

Sender	juanita.marchand@enron.com
Recipients	['irene.flynn@enron.com', 'michael.eiben@enron.com', 'john.hodge@enron.com']
File	hodge-j/discussion_threads/30.

I have compiled all the required information needed to complete the New Shipper Affirmation Form that you faxed me yesterday. The completed form will be faxed to you to sign as the duly authorized representative. I will provide copies of the DOE Docket , NEB License Order and the approval memo below as support and update authorization changes to Maritime as they occur. Please fax a signed copy of the Affirmation Form to me at (713)646-8875. You may fax, or request that I fax the finished document to Maritimes per their directions. I will need a contact person at Maritime to provide pipeline information on the manifest quantities on a monthly basis to insure accurate reporting to Customs. Thanks, Juanita ----- Forwarded by Juanita Marchand/HOU/ECT on 01/26/2001 01:40 PM -----

BRUCE.J.MULHOLLAND@CUSTOMS.TREAS.GOV@CUSTOMS.TREAS.GOV on 01/26/2001 12:59:39 PM Please respond to BRUCE.J.MULHOLLAND@CUSTOMS.TREAS.GOV To: Juanita.Marchand@enron.com, JOHN.C.FOX@CUSTOMS.TREAS.GOV, TIMOTHY.E.DONNELL@CUSTOMS.TREAS.GOV, DEBORAH.L.ZWEARCAN@CUSTOMS.TREAS.GOV cc: jensen@ainop.com Subject: Maritimes and Northeast Pipeline

January 26, 2001

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If you have further concerns please do not hesitate to contact this office.

Sincerely,

Bruce Mulholland Supervisory Customs Inspector U S Customs Service 1 Main Street Calais, ME 04619

Tel (207) 454-3690 ext. 102 Fax (207) 454-7122 E-mail: BRUCE.J.MULHOLLAND@CUSTOMS.TREAS.GOV

Message 12 of 32

Morgan Stanley Capital Group Inc. ("Morgan")

Sender	sara.shackleton@enron.com
Recipients	['s..bradford@enron.com', 'tanya.rohauer@enron.com', 't..hodge@enron.com', 'credit <.williams@enron.com']
File	hodge-j/deleted_items/206.

Tanya and Jay:

I need someone to please look into the following trades with various Enron entities (other than ENA) identified by Beth Ng of Morgan and whether these were booked incorrectly or should properly be booked in the names of the following affiliates:

Enron Liquids Enron Reserve Acquisition Corp. (oil option) EOTT (I think EOTT documents its financial deals separately)

Also, there have been trades for physical settlement, such as, an "oil forward" and a "gas TBP forward". Maybe Jeff knows the answer to this one.

Thanks.

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

Message 13 of 32

Draft of Master Netting Agreement Form

Sender	mary.cook@enron.com
Recipients	['joel.ephross@enron.com', 'tanya.rohauer@enron.com', 'carol.st.@enron.com', 's..bradford@enron.com']
File	hodge-j/inbox/165.

See attached items (clean and redline), including a general flow chart.

Tax: I am providing you a copy as a heads up in respect of consideration of Canada tax issues. Stephen, these issues were previously developed when we closed the PGE master. Can you provide to me a short memo describing the resolution of the issues (my recollection is that resolution resulted in a post agreement tax letter agreement to be devised by you and tax counsel at Blakes.)

Accounting: Information purposes.

Joel: Financing issues.

Others: Please review and comment on what is hopefully close to a final draft.

Thank you everyone.

Cordially, Mary Cook Enron North America Corp. 1400 Smith, 38th Floor, Legal Houston, Texas 77002-7361 (713) 345-7732 (713) 646-3393 (fax) mary.cook@enron.com

Message 14 of 32

Electronic Pay Stubs

Sender	enron.payroll@enron.com
Recipients	['john.hodge@enron.com']
File	hodge-j/inbox/335.

Get ready. Beginning in November, electronic pay stubs will be available to all employees who have their paychecks direct deposited into their bank account. Electronic pay stubs are an easy, fast, and efficient way for you to get your payroll information. They will also help Enron to realize a considerable savings in time and dollars spent over traditional printed pay stubs.

If you prefer to receive a hardcopy of your pay stub, click on the link below to complete a request form. This form must be submitted to Payroll by October 15, 2001. Unless you submit a form your pay stub information will default to electronic viewing.

Please click on the link below.

Name: JOHN HODGE Personnel number: P00503725 Phone: 7138537276

If you have questions about electronic pay stubs, please contact Janice Priddy (Payroll) 713-853-7839 or Marie Newhouse (ClickAtHome) at 713-345-4185 or send an email to Enron.Payroll@enron.com (Enron Payroll in Outlook).

Stay tuned for more details in the coming weeks.

<http://etcsurvey.corp.enron.com/wi/p0810709/i.asp?r=16068&s=IYYHJWUC&l=9>

Message 15 of 32

RE: Pioneer Natural Resources USA, Inc.

Sender	jeffrey.hodge@enron.com
Recipients	['john.grass@enron.com', 'jill.zivley@enron.com', 'robert.walker@enron.com', 'debra.perlingiere@enron.com']
File	hodge-j/all_documents/305.

Jill:

You are right. Once this is assigned it cannot be used by ENA. If everyone is fine with that, then there should be no issues.

Jeff

Jill T Zivley/ENRON@enronXgate 04/27/2001 10:54 AM

To: Debra Perlingiere/HOU/ECT@ECT cc: Robert Walker/HOU/ECT@ECT, Shawna Flynn/HOU/ECT@ECT, Sandi M Braband/HOU/ECT@ECT, Jeffrey T Hodge/HOU/ECT@ECT, John Grass/ENRON@enronXgate Subject: RE: Pioneer Natural Resources USA, Inc.

If it is OK w/ Legal, then it is OK w/ me. The only question I have is that if we assign it to ENA Upstream, can they still do business w/ ENA..? (That's why we were doing a new one anyway...plus I don't think the old one had our riders)..., but again, if it is OK w/ you, it is OK w/me! -----Original Message----- From: Perlingiere, Debra Sent: Friday, April 27, 2001 10:28 AM To: Zivley, Jill T. Cc: Walker, Robert Subject: Pioneer Natural Resources USA, Inc.

Jill,

Bob Walker has informed me that Pioneer has requested the existing GISB with ENA be assigned to ENA Upstream. The GISB at issue was acquired from Columbia Energy Services. In light of this there would be no need for a new GISB with Pioneer.

To date, Pioneer is holding final version of our GISB.

Debra Perlingiere Enron North America Corp. Legal Department 1400 Smith Street, EB 3885 Houston, Texas 77002
dperlin@enron.com Phone 713-853-7658 Fax 713-646-3490

Message 16 of 32

Re: Enovate

Sender	jeffrey.hodge@enron.com
Recipients	['gregg.penman@enron.com', 'rudwell.johnson@enron.com', 'clement.abrams@enron.com']
File	hodge-j/sent/23.

Clement:

Attached to the e-mail I am forwarding you will find the Enron Guaranty Agreement that was forwarded to Altrade. Could you review the comments of Altrade and respond. Also, I presume that Enron has provided a Guaranty to Altrade for ENA's business. You may well wish to use that as a starting point.

Thanks,

Jeff

----- Forwarded by Jeffrey T Hodge/HOU/ECT on 01/24/2001 08:48 AM -----

Rudwell Johnson@ENRON 01/18/2001 10:04 AM

To: Jeffrey T Hodge/HOU/ECT@ECT cc: Gregg Penman/Corp/Enron@Enron Subject: Re: Enovate

I recently received Altrade's comments to the joint guarantee from Enron and Peoples on behalf of Enovate. I would appreciate it if you can review the comments, so that we can provide them with some feedback.

Thanks Rudwell ex 53596

Lorie Georgeson <LGeorgeson@altra.com> on 01/17/2001 05:28:09 PM To: "Rudwell.Johnson@enron.com" <Rudwell.Johnson@enron.com> cc:

Subject: Enovate

<<Enron Guaranty Blackline Dec 27 to Original.doc>> <<Peoples Guaranty Blackline Dec 27 to Original.doc>>

Here is the blacklined versions of the guaranty's, as promised

Regards,

Lorie J. Georgeson Altrade Transaction, L.L.C. - Altrade Canada Inc. Suite 1950, 801 - 6th Ave. S.W. Calgary, Alberta T2P 3W2 Phone: (403) 231-6238 Fax: (403) 290-0060 Email: lgeorgeson@altra.com Website: www.altra.com

- Enron Guaranty Blackline Dec 27 to Original.doc - Peoples Guaranty Blackline Dec 27 to Original.doc

Message 17 of 32

FW: FINAL ISDA Documents between Amerada Hess Corporation and Enron

Sender	s..bradford@enron.com
Recipients	['frank.sayre@enron.com', 'carol.st.@enron.com', 't..hodge@enron.com', 'stephanie.mcginnis@enron.com']
File	hodge-j/inbox/461.

-----Original Message-----

From: "Butala, John (Commodities - NY)" <jbutala@Hess.com>@ENRON Sent: Tuesday, November 06, 2001 3:14 PM
To: Bradford, William S.; Moran, Tom Cc: Butala, John (Commodities - NY); Trivino, Grimald (Commodities - NY); Cerria, Chuck (Commodities - NY); Dellacona, Dana (Commodities - NY); Guerry, Rich (Commodities - NY) Subject: FINAL ISDA Documents between Amerada Hess Corporation and Enron North America Corp.

Bill, Attached, please find the Final version of the Enron-AHC ISDA Schedule and the Credit Support Annex for execution by Enron. All the terms of the Schedule have been agreed to and we ask that you print two copies, execute and express mail to my attention. The Credit Support Annex was sent to Enron last week and reviewed by Enron with the only comment "Seems too conservative. I will call to discuss." regarding the margin Threshold. As we have called you on a number of occasions and have not received any return telephone calls from you, we assume the thresholds as proposed to be acceptable. As such, we ask that you print two copies, execute and express mail to my attention. Thank you for your assistance with this matter.

John P. Butala Amerada Hess Corporation 1185 Avenue of the Americas New York, New York 10036 Telephone: 212-536-8654 Facsimile: 917-342-8730 Email: jbutala@hess.com

<<enron-ahc schedule-executioncopy1.doc>>

<<enron-ahc credit support annex-executioncopy1.doc>>

- enron-ahc schedule-executioncopy1.doc - enron-ahc credit support annex-executioncopy1.doc

Message 18 of 32

RE: OEC Mexico companies

Sender	randy.pais@enron.com
Recipients	[mary.ogden@enron.com', 'carlos.sole@enron.com', 't.hodge@enron.com', 'claudia.santos@enron.com']
File	hodge-j/deleted_items/143.

Mary, Tom Callaghan at the EEOS would be the business Point of Contact. Claudia Santos may be able to help you on the Secretarial related documents as I recall recently these may have been transferred to us. I have Marty's old legal files on OEC.

Randy

-----Original Message-----

From: Ogden, Mary Sent: Thursday, October 18, 2001 11:49 AM To: Pais, Randy Cc: Sole III, Carlos; Hodge, Jeffrey T.
Subject: OEC Mexico companies

Dear Randy: Please tell me who in your group may have the working files for these companies so we can ask them to update the list of officers and to advise Corp. Sec. which attorney and/or paralegal will be responsible for these entities.

Many thanks, Mary O. x37796 -----Original Message----- From: Pardue, Larry Sent: Thursday, October 18, 2001 11:17 AM
To: Ogden, Mary Subject: See below-referenced companies

Re: OEC Mexico Operations LLC OEC Mexico S. de R.L. de C.V. OEC Services S. de R.L. de C.V.

Wyndi McNamara of EEOS informed me that the above companies are now with EWS-ENA. Would you confirm this, and are you the designated keeper of these entities? If so, I'll update the database and our records.

Also, if they are with ENA, please confirm specifically which group within ENA (i.e., EWS-ENA, or EWS-Mexico). Also, if you know the designated lawyer in your group for these companies, I'll take that info too.

All of course, if you know.

Thanks Mary.

Larry Pardue Supervisor, Corporate Services and Assistant Secretary Enron Corp. 1400 Smith Street, Suite 4804
Houston, TX 77002 Tel +713 345 5376 Fax +713 646 8007 email: larry.pardue@enron.com

Message 19 of 32

RE: Houston Pipe Line Company LP

Sender	susan.elledge@enron.com
Recipients	['stacey.richardson@enron.com', 't.hodge@enron.com']
File	hodge-j/deleted_items/127.

Jeff,

I've spoken with Melissa, and they have finally realized that the Enfolio in question was not on the Exhibit of the sale documents (HPL to AEP). Since it is an intercompany contract, as you pointed out, it should never have been an issue. In the meantime, Dan Hyvl sent a GISB to your attention, and until it is finalized we will continue to put deals on GTCs. Call me if you have any questions.

Thanks, Susan 5-9989

-----Original Message-----

From: Hodge, Jeffrey T. Sent: Tuesday, October 16, 2001 4:29 PM To: Elledge, Susan Subject: RE: Houston Pipe Line Company LP

Susan:

Sorry for the delay in response. You can go ahead and call Melissa. Let her know our position and find out what attorney we should call over there to make the change.

Thanks,

Jeff

-----Original Message-----

From: Elledge, Susan Sent: Wednesday, October 10, 2001 3:25 PM To: Hodge, Jeffrey T. Subject: RE: Houston Pipe Line Company LP

Jeff,

Thanks for looking into this and getting back to me so quickly. Will you be handling this going forward, or will another attorney? Do you want me to call Melissa Graves and tell her what you told me, or is that someone else's responsibility? At the very least, I would like to tell her that someone will be in contact with AEP's legal department.

Thanks, Susan

-----Original Message-----

From: Rozycki, Joanne Sent: Wednesday, October 10, 2001 10:56 AM To: Elledge, Susan Subject: Houston Pipe Line Company LP

The attached document is being forwarded at the request of Jeff Hodge.

<< File: MEMO.doc >> Joanne Rozycki Senior Administrative Assistant Enron North America Corp. 1400 Smith Street, EB3880D Houston, TX 77002 Phone: (713) 853-5968 Fax: (713) 646-3490 Email: joanne.rozycki@enron.com

Message 20 of 32

Maritimes & Northeast Pipeline Customs Request

Sender	juanita.marchand@enron.com
Recipients	['john.hodge@enron.com']
File	hodge-j/discussion_threads/29.

bruce.j.mulholland@customs.treas.gov

Dear Sir, Enron North America Corp. located at 1400 Smith Street in Houston, Texas 77002 is requesting permission to participate in the filling of monthly releases of natural gas import quantities via Maritimes & Northeast Pipeline at Houlton, Maine. Enron is a new importer on the pipeline. Agent Karen Geraw of Norman G. Jensen, Inc. will filed entries under U.S. Customs Bond 539501222 and Federal Tax ID#76-031813900. Please contact Juanita Marchand at (713) 853-6253 or Juanita.Marchand@enron.com if you have any questions. Your prompt attention is greatly appreciated.

Thank You,

Message 21 of 32

FW: draft of NDR - MichCon language

Sender	t..hodge@enron.com
Recipients	['Marchris', 'Robinson', 'joanne.rozycki@enron.com']
File	hodge-j/sent_items/51.

Joanne:

For whatever reason, I cannot print this document. Could you give it a try?

Thanks,

Jeff

-----Original Message-----

From: Culotta, Lindsay Sent: Tuesday, November 27, 2001 8:51 AM To: Hodge, Jeffrey T. Subject: RE: draft of NDR - MichCon language

Jeff, The RFP is due to NDR this afternoon/tomorrow morning. If you could please provide me with the appropriate language to include by this afternoon, I would greatly appreciate it. Also, should I enclose a copy of our master agreement and/or a resale agreement with the RFP? Please advise. If you have any questions, please don't hesitate to call Sylvia (36211) or I. Thanks in advance for all your help. Lindsay 3-5199

-----Original Message-----

From: Hodge, Jeffrey T. Sent: Wednesday, November 21, 2001 1:26 PM To: Culotta, Lindsay Subject: RE: draft of NDR - MichCon language

Lindsay:

I have looked at the material and it seems backwards to me. I think that instead of ENA being assigned the contract between NDR and MichCon that MichCon should be assigned the supply contract between NDR and ENA. In other words, ENA should not step into the shoes of NDR, MichCon should.

Also, I have attached a copy of our sample Master Agreement.

Thanks,

Jeff << File: SAM3102new.doc >>

-----Original Message-----

From: Culotta, Lindsay Sent: Tuesday, November 20, 2001 11:09 AM To: Hodge, Jeffrey T. Subject: FW: draft of NDR - MichCon language

Please review. Also, if you could send an electronic copy of our master enfolio agreement, I would greatly appreciate it. Thanks. Lindsay

Lindsay Culotta Central Desk Origination Enron North America Phone: (713)853-5199 Fax: (713)646-3390

-----Original Message-----

From: ndrgroup@att.net [mailto:ndrgroup@att.net] Sent: Monday, November 19, 2001 10:36 AM To: Culotta, Lindsay; gerald.raines@michcon.com Cc: Robinson, Marchris Subject: draft of NDR - MichCon language

To all Concerned

Included is a draft of the language for the transaction between NDR and MichCon. If you have any questions please contact me at 301-516-1636 or by reply e-mail.

Rickey << File: Assignment_agreement_between_NDR_and_Enron_for_MichCon1.doc >>

Message 22 of 32

FW: Ashland Chemical

Sender	tanya.rohauer@enron.com
Recipients	['carol.st.@enron.com', 't..hodge@enron.com']
File	hodge-j/inbox/542.

-----Original Message-----

From: Vanek, Darren Sent: Tuesday, November 27, 2001 1:52 PM To: Bradford, William S. Cc: Rohauer, Tanya; Williams, Jason R (Credit) Subject: FW: Ashland Chemical

Two new issues (Tanya- you are aware of the Ashland issue.):

1) WPS Energy Services-Jeff Malloy, Credit Manager of WPS, is upset with our pending margin call. He continues to cite the fact that he issues a \$60 MM grty from WPS Resources, parent to Energy Services and the regulated Wisconsin Public Service. \$60 MM is a far stretch for the value of the paper. As a recap of the WPS, I approached them about 2 months ago about renegotiating the thresholds in the contract and executing an Enfolio. They said that they would look into it, but did not get back to me until all of the "problems" began to occur. Jeff and I spoke a few weeks ago when he called for Adequate Assurances under a GISB that was assigned with CES purchased, but later terminated. I informed him that the contract was terminated and enlightened him to the fact that we were not currently margining him on the ISDA contract. He backed down.

2) Ashland Incorporated, Sherry Tackett would like to work on netting the physical and financial payments and decided to withhold the payment so we can resolve the problem. For October business, Ashland owes Enron approx \$946,000 between ENA and ENA Upstream. The financial positions continue through Dec '03 with a current value of (\$604,314). She would like to unwind and receive payment on the financial positions before she pays physical. She says she will pay interest on the unpaid invoice while we work on the issue. I politely explained to her that withholding payment is not the best means to an end, but that we will explore alternatives.

-Darren

-----Original Message-----

From: McFatridge, Thomas Sent: Tuesday, November 27, 2001 12:37 PM To: Vanek, Darren Cc: Baxter, Bryce; Eubanks Jr., David W. Subject: Ashland Chemical

Darren,

I spoke with Sherry Tackett at Ashland. Her phone number is 614-790-6941. She said that they have financial positions out to 2001 with us. She said that Enron owes Ashland 3.3 million and Enron owes Ashland 827,000 on the financial positions. On the physical side, they own ENA Upstream 559,000+ and they owe ENA 387,000+. She is trying to tie the payment for physical gas to the financial positions and suggesting that we unwind the financial positions. Please give her a call. Please let me know if I can be of any help.

Thanks, Tom McFatridge 58189

Message 23 of 32

TCO-AUCTION OF FTS CAPACITY

Sender	navigator@nisource.com
Recipients	['navigator@nisource.com']
File	hodge-j/deleted_items/379.

COLUMBIA GAS TRANSMISSION CORPORATION NOTICE TO ALL INTERESTED PARTIES OCTOBER 17, 2001

Notice ID: 3188 5 - NO RESPONSE REQUIRED

SUBJECT: AUCTION OF FTS CAPACITY

Columbia Gas Transmission has posted the following offers of FTS capacity.

Additional details of this capacity may be found in the Columbia Internet NAVIGATOR system under the Capacity Release Folder, Offers, Offers Summary, Offer Type, Capacity Auctions, under the following offer numbers:

Offer Rate Receipt No. Schedule Point Delivery Point

33843 FTS Leach Market Area 6 33844 FTS Leach Market Area 25 33845 FTS Leach Market Area 8 33846 FTS AO5 Market Area 36

33827 FTS Lebanon Market Area 1 33828 FTS Leach Market Area 5 33829 FTS Kenova Agg Market Area 5 33830 FTS Lebanon Market Area 6 33831 FTS Leach Market Area 8 33832 FTS Kenova Agg Market Area 8 33833 FTS Leach Market Area 8 33834 FTS Leach Market Area 9 33835 FTS Leach Market Area 10 33836 FTS Leach Market Area 10 33837 FTS Leach Market Area 12 33838 FTS Leach Market Area 15 33839 FTS Leach Market Area 15 33840 FTS Leach Market Area 19 33841 FTS Alexander Agg Market Area 32 33842 FTS Highland Market Area 38

For additional information, please contact your Account Representative or your Customer Services Team.

Message 24 of 32

TCO-AUCTION OF FTS CAPACITY

Sender	navigator@nisource.com
Recipients	['navigator@nisource.com']
File	hodge-j/deleted_items/325.

COLUMBIA GAS TRANSMISSION CORPORATION NOTICE TO ALL INTERESTED PARTIES OCTOBER 25, 2001

Notice ID: 3209 5 - NO RESPONSE REQUIRED

SUBJECT: AUCTION OF FTS CAPACITY

Columbia Gas Transmission has posted the following offers of FTS capacity.

Additional details of this capacity may be found in the Columbia Internet NAVIGATOR system under the Capacity Release Folder, Offers, Offers Summary, Offer Type, Capacity Auctions, under the following offer numbers:

Offer Rate Receipt No. Schedule Point Delivery Point

33975 FTS Leach Market Area 6 33974 FTS D3 Market Area 3 33976 FTS Leach Market Area 8 33978 FTS AO5 Market Area 36

33958 FTS Leach Market Area 5 33959 FTS Kenova Agg Market Area 5 33960 FTS Lebanon Market Area 6 33961 FTS Leach Market Area 8 33962 FTS Kenova Agg Market Area 8 33973 FTS Leach Market Area 9 33963 FTS Leach Market Area 9 33964 FTS Leach Market Area 10 33965 FTS Leach Market Area 10 33966 FTS Leach Market Area 12 33967 FTS Leach Market Area 15 33968 FTS Leach Market Area 15 33969 FTS Leach Market Area 19 33970 FTS Alexander Agg Market Area 32 33971 FTS Highland Market Area 38

For additional information, please contact your Account Representative or your Customer Services Team.

Message 25 of 32

FW: Netting agreement

Sender	steve.van@enron.com
Recipients	[t..hodge@enron.com]
File	hodge-j/deleted_items/492.

Does Carol's comment make sense? Let me know if there's anything I need to do.

Steve

-----Original Message-----

From: St. Clair, Carol Sent: Friday, November 16, 2001 1:25 PM To: Van Hooser, Steve Subject: RE: Netting agreement

Steve: Check with Jeff Hodge as I think that their letter may have been referring to a payment netting" agreement only.

Carol St. Clair EB 4539 713-853-3989 (phone) 713-646-8537 (fax) 281-382-1943 (cell phone) 8774545506 (pager)
281-890-8862 (home fax) carol.st.clair@enron.com

-----Original Message-----

From: Van Hooser, Steve Sent: Friday, November 16, 2001 1:11 PM To: St. Clair, Carol Cc: Rohauer, Tanya; Hodge, Jeffrey T.; Sayre, Frank; Williams, Jason R (Credit) Subject: RE: Netting agreement

Carol,

On October 31 I provided Jay Williams with a Draft MNA for FPL Energy Power Marketing, Inc. (as per attached e:mail). Jay informed me several days later that FPL Energy was dragging its feet until the contract netting arrangement that its utility, Florida Power and Light was negotiating with ENA was finalized (as per Jeff Hodge's e:mail, he's been working on that transaction). I've check with Jay a couple of times during November and he has confirmed that FPL Energy is not yet ready to address a MNA.

It sounds as though the letter you received indicates that we need to be talking to someone at the holding company level (rather than at the FPL Energy level) about an MNA. I'll be happy to help if given a contact.

Steve

<< Message: FPL Energy >> -----Original Message----- From: Hodge, Jeffrey T. Sent: Friday, November 16, 2001 11:49 AM To: St. Clair, Carol; Sayre, Frank; Van Hooser, Steve Cc: Rohauer, Tanya Subject: RE: Netting agreement

Carol:

I am looking at some payment netting documents, but not master netting agreements. Why don't you send me the letter you received and I can figure out the direction to take?

Thanks,

Jeff

-----Original Message-----

From: St. Clair, Carol Sent: Friday, November 16, 2001 11:47 AM To: Sayre, Frank; Van Hooser, Steve Cc: Hodge, Jeffrey T.; Rohauer, Tanya Subject: Netting agreement

Frank or Steve: Are either of you handling a MNA with Carolina Power & Light Company, Florida Power Corporation and North Carolina Natural Gas Corporation ? We just received a letter from Progress Energy (their parent?) and sounds like they are anxious to reach closure on a MNA.

Carol St. Clair EB 4539 713-853-3989 (phone) 713-646-8537 (fax) 281-382-1943 (cell phone) 8774545506 (pager)
281-890-8862 (home fax) carol.st.clair@enron.com

Message 26 of 32

RE: Netting agreement

Sender	steve.van@enron.com
Recipients	['frank.sayre@enron.com', 'tanya.rohauer@enron.com', 'carol.st.@enron.com', 't.hodge@enron.com']
File	hodge-j/deleted_items/468.

Carol,

On October 31 I provided Jay Williams with a Draft MNA for FPL Energy Power Marketing, Inc. (as per attached e:mail). Jay informed me several days later that FPL Energy was dragging its feet until the contract netting arrangement that its utility, Florida Power and Light was negotiating with ENA was finalized (as per Jeff Hodge's e:mail, he's been working on that transaction). I've check with Jay a couple of times during November and he has confirmed that FPL Energy is not yet ready to address a MNA.

It sounds as though the letter you received indicates that we need to be talking to someone at the holding company level (rather than at the FPL Energy level) about an MNA. I'll be happy to help if given a contact.

Steve

-----Original Message-----

From: Hodge, Jeffrey T. Sent: Friday, November 16, 2001 11:49 AM To: St. Clair, Carol; Sayre, Frank; Van Hooser, Steve
Cc: Rohauer, Tanya Subject: RE: Netting agreement

Carol:

I am looking at some payment netting documents, but not master netting agreements. Why don't you send me the letter you received and I can figure out the direction to take?

Thanks,

Jeff

-----Original Message-----

From: St. Clair, Carol Sent: Friday, November 16, 2001 11:47 AM To: Sayre, Frank; Van Hooser, Steve Cc: Hodge, Jeffrey T.; Rohauer, Tanya Subject: Netting agreement

Frank or Steve: Are either of you handling a MNA with Carolina Power & Light Company, Florida Power Corporation and North Carolina Natural Gas Corporation ? We just received a letter from Progress Energy (their parent?) and sounds like they are anxious to reach closure on a MNA.

Carol St. Clair EB 4539 713-853-3989 (phone) 713-646-8537 (fax) 281-382-1943 (cell phone) 8774545506 (pager)
281-890-8862 (home fax) carol.st.clair@enron.com

----- Inline attachment follows -----

From: </O=ENRON/OU=NA/CN=RECIPIENTS/CN=SVANHOO> To: Williams, Jason R (Credit)
</O=ENRON/OU=NA/CN=RECIPIENTS/CN=Jwilli10> CC: Hodge, Jeffrey T.
</O=ENRON/OU=NA/CN=RECIPIENTS/CN=Jhodge>, Cook, Mary </O=ENRON/OU=NA/CN=RECIPIENTS/CN=Mcook>
Date: Wednesday, October 31, 2001 5:10:47 GMT Subject:

Jay,

Per your instruction, attached is the Master Netting Agreement for FPL Energy Power Marketing, Inc. Please not that there are several matters relating to Exposure Threshold and Guarantee/Guarantor are highlighted in red. I believe that this draft can go with those matters highlighted. If however you know the Exposure Threshold and whether there is an FPL Guaranty that is to be amended, we could make changes prior to distribution. I will complete the Collateral Annex as soon as I receive the Credit Worksheet.

Mary,

I have modified the MNA form to cover my two situations where the Enron Counterparty consists of only 1 entity. All one would have to do is global replace FPL Energy with the new acronym. If you know of anyone else with a Florida Power type situation, you might let them know.

Steve

Steve Van Hooser Enron North America Corp. 713-853-7238 713-646-3490 (fax)

Message 27 of 32

LC Update

Sender	carol.st.@enron.com
Recipients	['sara.shackleton@enron.com', 'edward.sacks@enron.com', 's..bradford@enron.com', 'lisa.mellencamp@enron.com', ...]
File	hodge-j/inbox/414.

Ed and Bill: Per Leslie reeves, we did receive a payment from LG&E Energy Marketing so the only issue remaining on them is whether the LC has been renewed. As Ed reported, El Paso renewed their LC so there is nothing to do on that. With respect to Enserco, I faxed the proposed new LC to ed and spoke with Don Perkins, their credit manager (303) 568-3255. I told him that he may be receiving a call from you regarding Fortis, the Issuer. I also told him that drawing condition #1 would have to change to take out the reference to delivery of natural gas and he agreed. He was also going to talk to Lynn Evans, his attorney, about the procedures that need to be followed under 'Special Instructions' as I do not think that we should be sending anything to Fortis. More to come tomorrow.

Ed: Please e-mail me, Sara and Jeff a description of where things stand with Niagara based on their payment today as it sounds complicated and may require us to piece together all of the contracts we have with them before deciding how to proceed. Did you have any luck confirming the status of the Chase LC?

Sara, Let's meet in the morning. We also will probably here from Lyn Evans, Enserco's lawyer.

Carol St. Clair EB 4539 713-853-3989 (phone) 713-646-3393 (fax) 281-382-1943 (cell phone) 8774545506 (pager) 281-890-8862 (home fax) carol.st.clair@enron.com

Message 28 of 32

RE: Onondaga GSA

Sender	carol.st.@enron.com
Recipients	['john.schwartzburg@enron.com', 't..hodge@enron.com']
File	hodge-j/inbox/379.

John: Jeff Hodge is handling this.

Carol St. Clair EB 4539 713-853-3989 (phone) 713-646-3393 (fax) 281-382-1943 (cell phone) 8774545506 (pager) 281-890-8862 (home fax) carol.st.clair@enron.com

-----Original Message-----

From: Schwartzburg, John Sent: Monday, December 10, 2001 11:55 AM To: St. Clair, Carol Cc: Mitro, Fred; Jacoby, Ben; Tweed, Sheila Subject: Onondaga GSA

Carol, this is connection with Onondaga GSA and the bankruptcy related default event it contains that I sent an e-mail to you about last week. Apparently, this GSA is \$800k positive to Enron. I understand your group is handling all GSA's, and will be dealing with this contract. Can you let Fred Mitro and Ben Jacoby know which commercial person in your group they should contact about this GSA?

Message 29 of 32

Re: Exchange with CGAS

Sender	scott.goodell@enron.com
Recipients	['dick.jenkins@enron.com', 'chris.germany@enron.com', 'john.hodge@enron.com', 'victor.lamadrid@enron.com']
File	hodge-j/all_documents/93.

The following tickets have been entered and are validated in Sitara: K#67304 654986 Beginning 3/6 Sell 654873 Buy 654874

K#67300 652472 Beginning 3/3 Sell 652132 Buy 652176

From: Victor Lamadrid @ ECT 03/05/2001 09:05 PM

To: John Hodge/Corp/Enron@ENRON, Scott Goodell/Corp/Enron@ENRON, Chris Germany/HOU/ECT@ECT, Dick Jenkins/HOU/ECT@ECT, Scott Hendrickson/HOU/ECT@ECT cc: Alvin Thompson/Corp/Enron@Enron, Joann Collins/Corp/Enron@ENRON, Beverly Beaty/HOU/ECT@ECT, Kimat Singla/HOU/ECT@ECT, Kulvinder Fowler/NA/Enron@ENRON

Subject: Exchange with CGAS

John/Scott/Chris, Please create a park and lend(synthetic storage) transport tkt in Sitara to capture the exchange we did with Cgas so we can schedule in Unify. We park 310,000 in March and get back in August of 2001. John Hodge has associated costs. I believe the contracts are contract #'s 67300 and 67304.

The sitara tkts for the exchange are 655097 abnd 655096. We will cover costs and be able to pay CGAS bills associated with this transaction once the transport cap. tkt is created in Sitara. No need to create unnecessary CPR pipeline exchange tkts. If you have questions let me know.

Message 30 of 32

FW: E-Mail - Final

Sender	r..pena@enron.com
Recipients	['yao.apasu@enron.com', 'suzanne.adams@enron.com', 'alan.aronowitz@enron.com']
File	hodge-j/inbox/186.

Listed below are the presentations from the 2001 Enron Wholesale Services Legal Conference which was held on October 11 and 12 at the Woodlands Resort & Conference Center:

"Deregulation of Energy Markets"

"Lessons Learned in California"

"Lessons Learned in International"

"Preparing for Workouts and Evaluating Distressed Situations"

"Practicing Under Revised Article 9"

"Current Developments in European Markets"

"Key Provisions in Trading Forms"

"Dash and Legal Risk Memo Procedures"

If you would like a copy of any of the presentations please contact me and I will forward the requested presentations via e-mail.

Please note, Mark Haedicke's, Janet Dietrich's and John Lavorato's presentations will not be made available per their request.

Laura R. Pena Enron Event Coordinator 713.853.5376 (phone) 713.594.4512 (cell) 713.646.5800 (fax)

Message 31 of 32

Re: Oil & Gas Confirms - Andex	
Sender	jeffrey.hodge@enron.com
Recipients	['nony.flores@enron.com']
File	hodge-j/sent/29.

Nony:

Thanks for the note. I had caught that, but I appreciate you letting me know.

Jeff

Nony Flores 05/29/2001 06:06 PM

To: Jeffrey T Hodge/HOU/ECT@ECT cc: Subject: Oil & Gas Confirms - Andex

Jeff: FYI. There is a typo in the first paragraph of the gas confirm and Nancy Corbett has confirmed that it should read "... between Brazos VPP LP and Enron North America Corp." instead of "Star VPP LP.."

Nony ----- Forwarded by Nony Flores/HOU/ECT on 05/29/2001 11:54 AM -----

John Viverito@ENRON 05/29/2001 09:04 AM

To: Nony Flores/HOU/ECT@ECT cc: Subject: Oil & Gas Confirms - Andex

Nony-

When you have time, let's discuss.

Thanks!

John Viverito Phone (713) 345-7814 Fax (713) 646-3490 e-mail John.Viverito@enron.com ----- Forwarded by John Viverito/Corp/Enron on 05/29/2001 09:03 AM -----

Connie Castillo@ENRON_DEVELOPMENT 05/25/2001 02:45 PM

To: billswenson@akllp.com, Phillip Ballard/Enron@EnronXGate, Joan Quick/Enron@EnronXGate, Brian Otis/Enron@EnronXGate, John Viverito@Enron, Jeffrey T Hodge@ECT cc: Nancy Corbet/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT Subject: Oil & Gas Confirms - Andex

The following is from Nancy Corbet:

Attached are the form Oil and Gas Confirms for the Andex transaction . Please take a look and I'll then circulate revised draft to the larger group next week. Obviously need details in schedules etc. (We anticipate closing 1st of June).

Connie Castillo Legal Department Enron Global Markets 713-345-7891

Message 32 of 32

RE: Motion To Reject Gas Transportation Contracts

Sender	steve.van@enron.com
Recipients	[ed.mcmichael@enron.com', 'chris.germany@enron.com', 'ruth.concannon@enron.com', 'david"."z@aklp.com', 'david"."z@aklp.com']
File	hodge-j/inbox/423.

Sorry, I forgot the attachment.

Steve

-----Original Message-----

From: Van Hooser, Steve Sent: Friday, December 28, 2001 3:20 PM To: McMichael Jr., Ed; Germany, Chris; Concannon, Ruth; Miller, Stephanie; Little, Kelli; Garza, Maria Cc: Hodge, Jeffrey T.; "Zdunkewicz, David" <davidz@aklp.com>@ENRON; Sager, Elizabeth; Mellencamp, Lisa Subject: RE: Motion To Reject Gas Transportation Contracts

This morning I had the opportunity to discuss the issue of Transportation Contract rejection with David Zdunkewicz of Andrews and Kurth. He and his partner Jeff Spiers have been advising other Enron divisions regarding the contract rejection process.

I am told that a motion has been filed with the bankruptcy court requesting that shorthand procedures be established for the purpose of allowing the various Enron Debtors to reject executory contracts. That motion is apparently slated to be heard on January 7. The attached template describes the information that must be filed with the court and forwarded to the creditors' committee and to the relevant counterparty whose contract is being rejected. Assuming that the order is approved, we'll be able to start rejecting transportation contracts as early as January 8.

Kelli and Maria,

In order to expedite the process, could you please fill out the attached template, providing the information requested.

Please call with any questions.

Thanks for your help.

Steve Van Hooser

-----Original Message-----

From: Van Hooser, Steve Sent: Thursday, December 27, 2001 3:29 PM To: McMichael Jr., Ed; Germany, Chris; Concannon, Ruth; Miller, Stephanie; Little, Kelli; Garza, Maria Cc: Hodge, Jeffrey T. Subject: FW: Motion To Reject Gas Transportation Contracts

Attached is an e-mail that I forwarded to Jeff Speirs, a bankruptcy attorney with Andrews and Kurth who will be assisting with the mechanics of rejecting the out of the money transportation agreements that you all have identified. I imagine that we will need full company names, contact persons and addresses in order to place the different pipes on notice of the motion to reject. Could you please coordinate the gathering of this information so that we will be in a position to act on it as soon as possible after New Years? Thanks for your help.

Steve Van Hooser

-----Original Message-----

From: Van Hooser, Steve Sent: Thursday, December 27, 2001 3:07 PM To: 'jspiers@aklp.com' Cc: Sager, Elizabeth; Hodge, Jeffrey T. Subject: Motion To Reject Gas Transportation Contracts

Jeff,

I am an Enron Wholesale Services attorney who is advising on ENA gas transportation matters. Elizabeth Sager suggested that I contact you about assisting me with the preparation of a Motion to Reject the bulk of the executory

transportation service agreements that ENA has with interstate pipeline companies.

The attached spreadsheet summarizes the terms of said transportation agreements; please note that the first sheet of the spreadsheet file describes the 5 transportation contracts that ENA wishes to assume; the remainder are out of the money transportation and storage arrangements that ENA desires to reject. Please review the attached and let me know if it contains sufficient information with which to proceed with the preparation of the Motion.

I imagine you will have plenty of questions. . . . I myself have a number of questions regarding the agency relationships shown on the spreadsheet, as well as ENA's right or need to reject those Service Agreements under which ENA has heretofore released pipeline capacity to third parties.

I look forward to speaking with you about these matters as well as determining the timeframe for rejecting these contracts.

Steve Van Hooser Enron North America Corp. 713-853-7238(o) 713-582-6413(c) 713-646-3490 (fax)

<< File: Transport-Storage Review-MAIN FILE(12-21-01).xls >>
